

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 25-07

PKDC, LLC,
Complainant,

v.

COSCO SHIPPING LINES CO., LTD.,
Respondent.

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) and Respondent COSCO Shipping Lines Co. Ltd. (“Respondent” or “COSCO”), by their undersigned counsel, hereby submit this Joint Motion to Extend Deadlines (“Motion”), respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer’s Scheduling Order, as detailed herein, by twenty-eight (28) days. The parties seek this extension to provide additional time for Respondent to provide outstanding interrogatory responses and documents in response to Complainant’s second discovery requests, as well as to provide the parties additional time to complete settlement discussions.

Good cause exists for a brief extension of the remaining deadlines by four weeks. In the additional time provided by the previous extension of the Scheduling Order, the parties have diligently discussed settlement, and have worked to narrow the gap between their positions. Additional time before discovery closes, however, is necessary to complete these discussions. A

brief extension of time to facilitate these settlement discussions will promote the Commission’s “policy in favor of settlement,” *Carlstar Grp. LLC v. UTI, U.S., Inc.*, Docket No. 17-08, 2018 WL 4002863, at *1 (ALJ Aug. 14, 2018) (granting a brief extension of deadlines), and not significantly delay the resolution of this matter.

Furthermore, good cause exists for a four-week extension of the remaining deadlines as Respondent still has not produced any documents in response to Complainant’s second requests for production. Additionally, the parties have met and conferred regarding Respondent’s interrogatory responses, and Respondent is reviewing those responses and may revise them to address Complainant’s concerns. A four-week extension should afford Respondent sufficient time to complete its outstanding discovery responses and Complainant time to review those responses and assess whether to move to compel.

Event	Current Deadline	Proposed New Deadline
Close of all discovery	July 13, 2026	August 10, 2026
Complainant’s brief, proposed findings of fact, and appendix	July 27, 2026	August 24, 2026
Respondent’s opposition brief, proposed findings of fact, responses to Complainant’s proposed findings of fact and appendix due	August 26, 2026	September 23, 2026
Complainant’s reply brief and responses to findings of fact due	September 9, 2026	October 7, 2026

* * *

For the foregoing reasons, the parties respectfully request that the Presiding Officer grant the instant motion and extend the deadlines in this matter.

Dated: July 9, 2026

/s/ Luke Mathers

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Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on July 9, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

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